

FOURTH ADDENDUM TO LEASE AGREEMENT

This Fourth Addendum to Lease Agreement ("**Fourth Addendum to Lease Agreement**") is entered into as of the dates set forth below, but effective for all purposes as of November 1, 2020 ("**Effective Date**") by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is P.O. Box 62230, Lafayette, Louisiana 70596 (the "**Lessor**");

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 350 Pine Street, Suite 1775, Beaumont, Texas 77701 (the "**Lessee**").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 ("**Original Lease Agreement**"), as amended by that certain Addendum to Lease Agreement dated as of June 30, 2000 ("**First Addendum to Lease Agreement**"), that certain Addendum to Lease Agreement dated as of August 10, 2000 ("**Second Addendum to Lease Agreement**"), and that certain Third Addendum to Lease Agreement dated as of May 31, 2010 ("**Third Addendum to Lease Agreement**"; the Original Lease Agreement, First Addendum to Lease Agreement, Second Addendum to Lease Agreement, and Third Addendum to Lease Agreement are hereinafter collectively referred to as the "**Lease Agreement**");

WHEREAS, the Lease Agreement provides for an Extension Term of One Hundred Twenty (120) months, which Extension Term is set to expire October 31, 2020;

WHEREAS, the Lessee desires to extend the Lease Agreement for a Second Extension Term for an additional term of Sixty (60) months ("**Second Extension Term**"), and the parties wish to amend the Lease Agreement to provide for matters related to the said Second Extension Term.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. The Lessor and the Lessee do, by execution hereof, agree that the Lease Agreement is hereby extended for Sixty (60) months beginning November 1, 2020 and expiring October 31, 2025 ("**Second Extension Term**").
2. During the Second Extension Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 2.10 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$ 1.85 per square foot of the Premises per year, payable monthly and iii) Base Rent shall be a sum of \$ 6,246.77 per month for months One (1) through Sixty (60) of the Second Extension Term.

3. Lessee shall have the option to renew the Lease Agreement for one (1) additional sixty (60) month term upon the expiration of the Second Extension Term ("**Option Term**"). During the Option Term, the Total Monthly Rental Payment shall be calculated by using i) a Common Area Maintenance Charge of \$ 2.10 per square foot of the Premises per year, payable monthly, ii) a Taxes and Insurance Charge of \$ 1.85 per square foot of the Premises per year, payable monthly, and iii) Base Rent shall be a sum of \$ 6,631.19 per month for months One (1) through Sixty (60) of the Option Term.
4. The Total Monthly Rental Payments shall be as follows:

Second Extension Term - Months One (1) - Sixty (60):

Base Rent	\$ 6,246.77
Common Area Maintenance Charges	807.28
Taxes and Insurance Charges	<u>711.17</u>
Total Monthly Rental Payment	<u>\$ 7,765.22</u>

Option Term - Months One (1) - Sixty (60):

Base Rent	\$ 6,631.19
Common Area Maintenance Charges	807.28
Taxes and Insurance Charges	<u>711.17</u>
Total Monthly Rental Payment	<u>\$ 8,149.64</u>

5. Section 14.01 of the Lease shall be amended to include the following:

Landlord shall indemnify, defend and hold Tenant harmless from any and all claims, demands and/or causes of action arising out of the negligence and/or gross negligence of Landlord occurring on or after the Effective Date of this Fourth Addendum to Lease Agreement.

6. All terms and conditions of the Lease Agreement not specifically amended or modified herein shall remain in full force and effect as set forth in the Lease Agreement.

7. Capitalized terms used herein and otherwise defined herein shall have the meanings ascribed to such terms in the Lease Agreement.

8. The Lessor and the Lessee hereby agree that the terms and conditions of this Fourth Addendum to Lease Agreement shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants on On The Boulevard Shopping Center.

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

Printed Name: _____

Printed Name: _____

LESSOR:

**BELLE REALTY OF LAFAYETTE,
L.L.C.,** a Louisiana limited liability
company

By: _____

Printed Name: Adam Abdalla
Printed Title: Authorized Representative
Dated: 3/2/2020

Notary Public



THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses.

WITNESSES:

Printed Name: _____

Printed Name: _____

LESSEE:

DELI MANAGEMENT, INC.,
a Texas corporation

By: _____
Printed Name: _____
Printed Title: _____
Dated: _____

Notary Public

